

Sushila Upadhyay v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 August 2009 · Writ-C No. 11915 of 2009 · **Writ dismissed as infructuous; shop connection already granted.**

HEADNOTE

Once the licensee has granted a new electricity connection after the consumer completed U.P. Electricity Supply Code formalities and deposited charges, a writ seeking that connection does not survive and is dismissed as infructuous.

FACTUAL SUMMARY

The petitioner sought a mandamus for electricity connection to her shop after applying and sending reminders. On 5 March 2009 the Division Bench directed the Sub Divisional Officer to grant the connection within one month if formalities were complete, or show cause. The U.P. Power Corporation's counter affidavit stated she completed Supply Code formalities, deposited charges on 6 April 2009, and supply commenced the same day with a sealing certificate. Counsel confirmed the grievance was redressed. Petitioner's counsel was absent on the revised list.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.4

new connection; infructuous writ

HOLDING

Where the consumer has completed the U.P. Electricity Supply Code formalities and deposited the charges, and the licensee has commenced supply and issued a sealing certificate, a writ seeking mandamus for that new connection no longer survives and is dismissed as infructuous. ¶ 1-2

PRINCIPLE TAGS

writ-dismissed-as-infructuous-with-liberty-to-move-afresh Once the licensee has granted a new electricity connection after the consumer completed U.P. Electricity Supply Code formalities and deposited charges, a writ seeking that connection does not survive and is dismissed as infructuous. ¶ 1-2